Agency File No: _____
Inquiry/iComplaints#: _____

NAME OF OPDIV: Office of the Secretary, Health and Human Service / Indian Health Service

Phone: **Fax:**

Part I: Inquiry Form

To be completed by EEO Official with employee or applicant, during initial inquiry

Date of Inquiry Contact: 09/12/2023 **EEO official completing this form:** _____
(Date employee or applicant contacted the EEO office):

Method of Contact: Email

Employee/Applicant Full Name: Kevin Dean Turnage

Organization alleged to have discriminated against Aggrieved Person (AP):

Center/Bureau/Region/Institute: HHS/IHS

Office: Phoenix

Division/Branch: Phoenix Indian Medical Center
(no abbreviations, please)

City: Phoenix

State: _____ Zip Code: _____

Employee/Applicant Home Address:
(Do Not accept P.O. Box Numbers)

Street Address: 1003 E Pinto CT

Apartment No. (if applicable): _____

City, State, Zip Code: Gilbert, AZ 85296

Home E-mail Address: kdturnage@protonmail.com

Work E-mail Address:

Employee/Applicant work Phone No.: _____ **Employee/Applicant Home Phone No.:** _____

Outcome of contact:

☐ **To seek information about the EEO complaint process**

☒ **To file an EEO complaint;**
(if selected, please complete **Part II: Pre-Complaint Intake Form** to begin the EEO complaint process)

☐ **To seek information about the Agency Alternative Dispute Resolution (ADR) program.**
Date employee/applicant referred to ADR:

☐ **Employee/applicant does not wish to officially begin the EEO complaint process at this time.**
Should emp/app later decide to officially start the EEO complaint process, emp/app understands that emp/app must contact the EEO office for filing a pre-complaint, no later than 45 calendar days from either the date of the alleged discriminatory act or the effective date of an alleged discriminatory personnel action.

Signature: _____

To be retained by EEO office for reporting/tracking purposes

Agency File No.:_____(To be completed by EEO Official)

NAME OF OPDIV:
Phone:_____ **Fax:**_____

Part II: Pre-Complaint Intake Form

For Aggrieved Persons (AP) wishing to begin the EEO complaint process, this form should be completed in its entirety

I. Date aggrieved person elected to begin the pre-complaint process:
(The 30 calendar day EEO counseling period (or as extended by agreement of the AP) commences when the AP first contacts the EEO Counselor or the appropriate OPDIV EEO office, and exhibit an intent to begin the EEO process. (See EEO MD-110, Chapter 2, VI.,C. para 2.)

INITIAL CONTACT DATE: 09/12/2023

II. (a) AP's Full Name:
Kevin Dean Turnage

(b) Position Title, Pay Plan, Series, Grade/Step:
(e.g. Management Analyst, GS-343-12/4)

Policy Officer ACTING GS-0610 -12/8

(c) AP's Unique Identifier:

Month of Birth April
Day of Birth 17
Last Four Digits of SSN 4074

(d) AP's Employment Status:

- [x] Full-time
- [ ] Part-time
- [ ] Contractor
- [ ] Title 42
- [ ] Title 38
- [ ] Other:_____
- [ ] Commissioned Corps
- [ ] Student Intern
- [ ] Fellow
- [ ] Former Employee
- [ ] Applicant

(e) Bargaining Unit:

YES or NO

(Please refer to item #37 on your latest SF-50; 8888=NO; anything other than 8888=YES.)
No

(f) Organization alleged to have discriminated against AP	**(g) AP's Home Address** (Do not accept P.O. Box)
Center/Region/Institute/Bureau HHS/IHS/ Office: Phoenix Area Office Division/Branch: Phoenix Indian Medical Center City, State, Zip Code: Phoenix AZ 85016 Work E-mail Address: kevin.turnage@ihs.gov	Street Address: 1003 E Pinto CT Apartment No. (if applicable): _____ City: Gilbert State: AZ Zip Code: 85296 Home E-mail Address: kdturnage@gmail.com
(h) AP's Work Phone No.: 602-647-9126	**(i) AP's Home Phone No.:** 901-220-8664
III. AP's Supervisor: (or if applicant, selecting official's name, where vacancy occurred) (a) Full Name: Endreya McCabe (b) Position Title: Director of Quality (c) Area Code – Phone Number: 602-248-4191 (d) Area Code – Fax Number: _____ (e) Organization: HHS/IHS Center/Region/Institute/Bureau: Phoenix Office/Division/Branch: Phoenix Indian Medical Center Mailcode: _____ Mailing Address: 4212 N 16th Street City: Phoenix State: AZ Zip Code: 85016 (f) E-mail address: Endreya.McCabe@ihs.gov	**IV. AP's Representative:** (Do not accept P.O. Box) Street Address: _____ Apartment No. (if applicable): _____ City: _____ State: _____ Zip Code: _____ E-mail Address: _____

V. Basis(es):

(Please check all that apply below.)

1.**Sex** (Please select appropriate box)

☒ Male ☐ Female

☐ **Sexual Orientation** (DHHS Policy dated December 6, 1993. The EEOC does not have jurisdiction over claims of sexual orientation discrimination.)

2. ■ **Color** (Pertains to skin color.)

3. **Equal Pay Act:** ☐ Male ☐ Female

4. **Disability:** ■ **Physical** ☐ **Mental**

5. **National Origin** (Discrimination because of an individual's or his/her ancestors' place of Origin.)

☐ Hispanic

☐ Other:_____

6. ■ **Age** (This basis applies if AP is 40 year of age older.)

Date of Birth (Provide only if age is selected as a basis) _____

7. ☐ **Religion** (The nature of a practice or belief. The phrase religious practice as used in 29 CFR part 1605.1, includes religious observances and practices.)

Specify: _____

8. ■ **Race**

☐ American Indian or Alaska Native, specify Tribe: ☐ Asian Pacific Islander ☐ Black ☐ White

9. ■ Retaliation/Reprisal (If AP selects this basis, please provide additional information below.)

Specify_____

☒ AP filed an informal complaint - Date Filed: _____

☒ AP filed a formal complaint - Date Filed: _____

☐ AP sought assistance from the Union regarding an EEO matter – Date: _____

☒ AP opposed an unlawful discriminatory practice or policy – Date opposed: _____

Explain the unlawful discriminatory practice opposed: _____

☐ AP was a witness in an EEO proceeding/matter. Case Name, No., Date: _____

☐ **N/A: AP does not feel that they have been discriminated against on any of the bases indicated above.** (AP understands that not stating a basis could possibly result in a dismissal, if he/she proceeds with a formal complaint.)

VI. Claim(s) of Alleged Discrimination: (Check all that apply and provide date of occurrence.)

☐ APPONTMENT/HIRE
Date:

☐ DUTY HOURS
Date:

☐ PAY INCLUDING OVERTIME
Date:

☐ RETIREMENT
Date:

☐ ASSIGNMENT OF DUTIES
Date:

☐ EVALUATION/APPRAISAL
Date:

☐ PROMOTION-SELECTION
Date:

☐ TERMINATION
Date:

☐ AWARDS
Date:

☐ EXAMINATION/TEST
Date:

☐ REASONABLE ACCOMODATION
Date:

☐ TERMS/CONDITON OF EMPLOYMENT
Date

☐ CONVERSION TO FULL TIME
Date:

☐ MEDICAL EXAMINATION
Date:

☐ REINSTATEMENT
Date:

☐ TIME AND ATTENDANCE
Date:

☐ DISCIPLINARY ACTION

☐ Demotion
☐ Removal
☐ Reprimand
☐ Suspension

Date:_____

☐ HARRASSMENT

☐ Sexual
☐ Non-Sexual

Date:_____

☐ REASSIGNMENT

☐ Denied
☐ Directed

Date: _____

☐ TRAINING
Date:

VII. Claim(s) Narrative: (*Provide a brief summary of the claim(s).*

_____

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Continued - VII. Claim(s) Narrative:

VIII. Responsible Management Officials (RMOs)/Witnesses:

(Provide full names, position titles, and phone numbers of the management officials who allegedly engaged in the discriminatory action(s) being reviewed and witnesses who would have first-hand knowledge of the discrimination.)

RMOs	*WITNESSES*
(1) ***Name:*** _____ ***Position/Title:*** _____ ***Phone # (including area code):*** _____	**(1)** ***Name:*** _____ ***Position/Title:*** _____ ***Phone # (including area code):*** _____
(2) ***Name:*** _____ ***Position/Title:*** _____ ***Phone # (including area code):*** _____	**(2)** ***Name:*** _____ ***Position/Title:*** _____ ***Phone # (including area code):*** _____
(3) ***Name:*** _____ ***Position/Title:*** _____ ***Phone # (including area code):*** _____	**(3)** ***Name:*** _____ ***Position/Title:*** _____ ***Phone # (including area code):*** _____

IX. Remedy or Resolution Requested:

(What remedies is the AP requesting in order to settle the issues at hand or to withdraw this pre-complaint?)

(1) _____

(2) _____

(3) _____

X. Related EEO/Grievance/Appeal Action:

Has the AP pursued any of the claims he/she is raising in *this* pre-complaint?

(a) in a previous or current EEO complaint? Yes ☐ No ☐

(b) in a previous or current negotiated grievance: Yes ☐ No ☐

(c) in a previous or current appeal to the Merit Systems Protection Board? Yes ☐ No ☐

(d) If A/P answered yes to any of the questions above (a-c), please list **case #**, **dates** and provide information regarding the **status** of each complaint, grievance or appeal.

Case # _____ Date: _____ Status: _____

XI. Election between traditional EEO Counseling and Alternative Dispute Resolution (ADR)/Mediation:

☒ **AP wishes to officially begin the EEO complaint process at this time – TRADITIONAL EEO COUNSELING**

Anonymity: AP has the right to remain anonymous at the pre-complaint stage of the EEO counseling process. Does (s)he wish to remain anonymous? (In some instances, please be aware that anonymity may be impracticable.)

☐ Yes, AP wishes to remain anonymous, (AP understands this may limit the possibility of resolution.)

☒ No, AP waives the right to remain anonymous. AP gives permission for his/her name to be used when contacting the Responsible Management or Settlement Officials.

Alternative Dispute Resolution (ADR) – MEDIATION PROCESS

☐ ADR elected – AP is interested in participating in the Mediation process. (Date)

☒ ADR declined – AP declines to participated in the Mediation process (Date) 13 September 2023

The AP's election to proceed through counseling or ADR is final. (EEO MD-110, Chapter 2, Part VII. A)

Privacy Act Statement – Authority: 42 U.S.C. 2000e-16 et seq and 29 CFR 1614.106.

Principle Purpose: Informal and formal taking of allegation of discrimination because of race, color, national origin, religion, sex, age, disability or retaliation**.**

Routine Uses: This form and the information on this form may be used: (a) as a data source for complaint information for production of summary descriptive statistics and analytical studies of complaints processing and resolution efforts and may be used to respond to general requests for information under the Freedom of Information Act: (b) to respond to requests from legitimate outside individuals or agencies (e.g. Members of Congress, The White House, the Equal Employment Opportunity Commission, or Federal Courts) regarding the status.

Attachments:

☐ **Representation Form**

☐ **Request for Approval to Use Official Time (complete and submit to your supervisor, if necessary)**

☐ **Aggrieved Person's Rights & Responsibilities**

☐ **Extension/Mediation Request**

DEPARTMENT OF HEALTH & HUMAN SERVICES

Public Health Service

Indian Health Service
Rockville, MD 20852

NOTICE OF RIGHTS AND RESPONSIBILITIES
Agency File No.:HHS-IHS-_____

This is to notify you that you have the following rights and responsibilities in connection with the processing of your EEO complaint.

You have the right to:

a. When EEO counseling is selected, receive in writing within **thirty (30) calendar days** from the date of initial contact (unless you agree in writing to an extension of not more than an additional sixty (60) calendar days) a Notice terminating EEO counseling and informing you of the right to file a formal complaint and with whom to file the complaint.

b. **Anonymity** during the EEO counseling phase of the pre-complaint process, unless waived. Should you elect anonymity, the request must be in writing.

c. **Representation** throughout the EEO complaint process. You must immediately inform the Agency in writing of such representation or any change in representation.

d. Choose between the Agency's **alternative dispute resolution** (ADR) process or EEO counseling, where the Agency agrees to offer ADR in the particular case, and receive information about each procedure. When you agree to participate in ADR, the written notice terminating the EEO counseling period will be issued upon completion of ADR or within ninety (90) calendar days of the date of initial contact with the EEO Counselor, whichever is earlier.

e. Elect between a **negotiated grievance procedure** and the EEO complaint process where an agency is covered by Title 5 United States Code (U.S.C.) § 7121(d) and where the negotiated procedure and the statute covers the alleged discrimination. You can file a grievance or a formal EEO complaint, **but not both.**

f. Elect to file an EEO complaint or an appeal with the **Merit Systems Protection Board** (MSPB) when the alleged discrimination involves an action appealable to the MSPB; *i.e.,* mixed case. You can file a formal EEO complaint or an appeal with the MSPB, **but not both.**

g. File a complaint within **fifteen (15) calendar days** of receipt of the EEO Counselor's Notice of Right to File a Formal Complaint in the event you wish to file a formal EEO complaint at the conclusion of EEO counseling or ADR. Only those claims raised during the pre-complaint process or claims that are like or related to those raised may be subject of the formal complaint.

h. **Amend** a formal complaint after it has been filed with claims that are like or related to those raised in the pending EEO complaint. All requests to amend must be in writing and submitted to the Agency within forty-five (45) calendar days of the alleged discriminatory event.

i. Receive notice when the Agency **consolidates** two or more complaints filed by you. The notice will advise you that the Agency will complete its investigation within 180 calendar days after the filing of the last complaint or 360 calendar days of the filing of the first complaint and that any request for a hearing may be filed any time after 180 calendar days have elapsed.

j. Request a **hearing** before an Administrative Judge (AJ) of the Equal Employment Opportunity Commission (EEOC) in a non-mixed case, either after 180 calendar days have elapsed from the date of filing a formal complaint or after completion of the investigation, whichever comes first. The Agency's letter acknowledging receipt of your formal complaint will identify the EEOC office to which the request must be sent and the Agency official to whom a copy of the request must be provided. After requesting a hearing, any requests to amend the complaint are filed with the EEOC.

k. An immediate **final decision without a hearing** after an investigation by the Agency in accordance with Title 29 Code of Federal Regulations (C.F.R.) Section 1614.108(f).

l. File a **civil action** in the U.S. District Court after 180 calendar days have elapsed from filing a formal complaint or an appeal with the EEOC.

m. File a **notice of intent to sue** when age is alleged as a basis for discrimination and of the right to file a lawsuit under the Age Discrimination in Employment Act (ADEA) instead of an administrative complaint of age discrimination, pursuant to 29 C.F.R. § 1614.201.

n. When alleging sex-based wage discrimination under the **Equal Pay Act (EPA),** immediately file a civil action in the U.S. District Court without exhausting the administrative process. If you file an administrative complaint of sex-based wage discrimination under the EPA, a civil action must be filed within two (2) years of the date of the occurrence, or within three (3) years of the date, if the violation is alleged to be willful. The time for filing a civil action is not tolled when an administrative complaint has been filed. Also, such claims are recognizable under Title VII of the Civil Rights Act.

You have a duty to:

a. **Mitigate damages**; *e.g.,* interim earnings or amounts that could be earned by you must generally be deducted from an award of back pay.

b. **Keep the Agency, and where applicable, EEOC, informed** of your current mailing address and serve copies of any appeal papers on the Agency.

You have a responsibility to:

a. Comply with all relevant **time frames** associated with the EEO complaint process.

b. Respond to an Agency's **offer of resolution** made pursuant to 29 C.F.R. § 1614.109(c) within thirty (30) calendar days of receipt. The rejection of the offer may result in the limitation of the Agency's payment of attorney's fees or costs.

c. Inform the EEO Counselor if you wish to file a **class complaint** and be advised of the procedures and responsibilities of a class agent.

This is to acknowledge that a copy of this form was provided to me.

_____ _____
Aggrieved Person Date

_____ _____
Date

DEPARTMENT OF HEALTH & HUMAN SERVICES

REQUEST FOR APPROVAL TO USE OFFICIAL TIME
Agency File No.: HHS-IHS-

This form is used to request official time when your presence is authorized or required by the Agency or the Equal Employment Opportunity Commission (EEOC) or when time is needed to prepare or present an EEO complaint to the Agency or the EEOC.

An aggrieved person, complainant, his/her representative, if employed by the Agency and otherwise in a pay status, and witnesses who are Federal employees, shall be automatically granted official time, regardless of their tour of duty, when their presence is authorized or required by the Agency or the EEOC.

Additionally, official time to prepare or present an EEO complaint is defined under Title 29 Code of Federal Regulations (C.F.R.) Section 1614.605(b) as: "a **reasonable** amount of official time, if otherwise on duty, to prepare the complaint and to respond to Agency and EEOC requests for information. The entitlement to official time to prepare or present an EEO complaint applies to the aggrieved person, complainant, the complainant's representative, if employed by the Agency and otherwise on duty, and witnesses who are Federal employees and in a duty status. The Agency is not obligated to change work schedules, incur overtime wages, or pay travel expenses to allow the aggrieved person/ complainant and the representative to confer. An employee must obtain written approval from his/her supervisor or designee prior to using "official time" to prepare for meetings or to respond to Agency or EEOC requests for information.

The total amount of official time that will be granted to an employee will vary, and therefore, will not be granted as a designated gross number of hours to be used at the employee's discretion. Rather, official time in non-mandatory situations, when an employee's presence is not authorized or required by the Agency or the EEOC, will be determined based on the needs of the employee balanced with the needs of the Agency.

REQUEST

I request 8 hours of official time from 0630 to 1500 on September 15, 2023 to prepare/present an EEO complaint. This request is made for the following specific purpose:

X a. To prepare a written formal complaint that must be filed before _____.

_____ b. To prepare a response to a request for information on my complaint from _____.

Revised 10/05

_____c. To prepare for a meeting with an EEO Investigator on_____.

_____d. To respond to a discovery request from_____ _____.

_____e. To prepare for a deposition scheduled on _____ _____.

_____f. To prepare for a pre-hearing conference/settlement conference/ mediation scheduled on_____.

_____g. To prepare for an EEOC hearing scheduled for_____ _____.

_____h. Other (e.g., meeting with representative):_____ _____.

I am requesting official time as:

Aggrieved Person/Complainant X

Aggrieved Person's/Complainant's Representative _____

Witness _____

_____ _____
Name Date

DECISION

_____ Approved as submitted. _____ Approved with limitations. See Remarks.

_____ Disapproved. (Requires concurrence from the OPDIV EEO Office prior to denial) See Remarks.

_____ _____
Signature Immediate Supervisor Date

REMARKS

NAME AUTHORIZATION FORM

To: _____

From: _____

Subject: Name Authorization
Agency File No.: HHS-IHS-_____-_____

In accordance with Title 29 Code of Federal Regulations (C.F.R.) Section 1614.105(g), the EEO Counselor shall not reveal the identity of an aggrieved person who consulted the EEO Counselor except when authorized to do so by the aggrieved person.

Accordingly, I do_____do not_____authorize the EEO Counselor to use my name in the processing of my pre-complaint. I understand that not allowing the EEO Counselor to reveal my identity will limit the possibility of resolution. Should I reconsider my decision to or not to remain anonymous, I will inform the EEO Counselor in writing.

_____ _____
Aggrieved Person Date

_____ _____
EEO Counselor Date

Revised 10/05

INDIAN HEALTH SERVICE
ALTERNATIVE DISPUTE RESOLUTION (MEDIATION) REQUEST AND REFERRAL FORM
Agency File No.: HHS-IHS-_____

1. Name of Requester (Aggrieved Person/Complainant):

2. Requester's Job Title, Series, Grade:

3. Requester's Area/Facility:

4. Requester's Office and Work Location:

5. Requester's Work Telephone Number and E-mail Address:

6. Requester's Home Address, Telephone Number, and E-mail Address:

7. Name and Contact Information for Requester's Representative (if applicable):

8. Is the Requester a Commissioned Corps Officer?: Yes/No

9. Is the Requester a Bargaining Unit Employee?: Yes/No

10. Who Is the Alleged Responsible Management Official(s)? (The person(s) the Requester alleges discriminated against him/her.):

11. Does the Requester Have Other Complaints, Appeals, or Grievances Pending Against the Agency?: Yes/No. If yes, please specify

12. Briefly summarize the dispute which you wish resolved and identify the manager(s)/individual(s) involved in the dispute. This information is used in identifying the appropriate person to participate in the Alternative Dispute Resolution/mediation process.

13. Briefly describe the relief or remedy that you seek to resolve this dispute.

I understand that Alternative Dispute Resolution (ADR)/mediation is a joint effort between the parties to facilitate an expedited resolution of disputes from and among employees.

I understand that the pre-complaint processing period shall be ninety (90) calendar days from the date of initial contact for the purpose of resolving the complaint through the mediation process.

I understand that my right to continue with the administrative complaint process will remain intact and available to me should an agreement not be reached through mediation.

I understand that I have the right to representation throughout this process. I understand that if I designate an attorney as my representative at the pre-complaint stage, attorney fees may only be awarded during the formal processing of a complaint. I further understand that if the designated representative is outside my immediate geographical area, the Agency will not be responsible for paying the representative's travel costs, per diem, or other expenses.

I understand that my election to mediate in lieu of traditional EEO counseling is final, and I can not withdraw from mediation and proceed through traditional EEO counseling. See Equal Employment Opportunity Commission Management Directive 110 (EEOC MD-110), Chapter 2,VII.A. "The election must be made in writing on a form developed by the agency, and the form will be attached to the EEO Counselor's Report…. The aggrieved person's election to proceed through counseling or ADR is final."

I understand that the mediator has no authority to make decisions, nor is the mediator acting as an advocate for any party.

If I elect to engage in the ADR/Mediation Program during the formal stage of the EEO complaint process, the processing of my formal complaint will be held in abeyance for no more than ninety (90) calendar days from my request for mediation to allow the parties to participate in the process. If the matter is not resolved through mediation, processing of my complaint will resume upon conclusion of the mediation process from the point mediation was requested.

_____ _____

Signature of Requester Date of Request

Please submit this form to Angela Porter, Director, Diversity Management and EEO Staff, 5600 Fishers Lane, Mailstop: 08E61, Rockville, MD 20857. The form can also be submitted via Email at IHSDMEEOStaff@ihs.gov.

EXTENSION OF EEO COUNSELING AGREEMENT

To: EEO Counselor

From: Aggrieved Person

Subject: Agreement to Extend EEO Counseling
Agency File No.:

Under the authority of Title 29 Code of Federal Regulations (C.F.R.) Section 1614.105(e), I grant the [OPDIV EEO Office] an additional_____calendar days in which to process my pre-complaint and attempt resolution. This will extend the EEO counseling period from thirty (30) calendar days to no more than ninety (90) calendar days. I understand that I may request a Notice of Final Interview/Notice of Right to File a Formal Discrimination Complaint at any time following the end of the initial thirty (30) calendar day pre-complaint EEO counseling period. Otherwise, I will receive such Notice upon completion of the EEO counseling inquiry, unless the matter has been resolved prior to that time.

_____ _____
Aggrieved Person Date

_____ _____
EEO Counselor Date

APPROVAL:

_____ _____
EEO Complaints Manager Date
or Team Leader

Revised 10/05

DESIGNATION OF REPRESENTATIVE
Agency File No.: HHS-IHS- - ____

Pursuant to Title 29 Code of Federal Regulations (C.F.R.) Section 1614.605(a), at any stage in the processing of a complaint, including the EEO counseling stage under 29 C.F.R. § 1614.105, Complainant shall have the right to be accompanied, represented, and advised by a representative of Complainant's choice. However, in cases where the representation of a Complainant would conflict with the official or collateral duties of the representative, the Agency may disqualify the representative. See 29 C.F.R. § 1614.605(c).

Those Complainants who may later be entitled to reasonable attorney fees cannot receive fees for services prior to official notice in writing to the Agency that counsel has been retained.

It is Complainant's duty to immediately inform the Agency if representation is retained. Failure to notify the Agency can effect any entitlement to fees or costs associated with such representation.

Please complete the information below and provide this form to Diversity Management and EEO Staff, Indian Health Service at:

IHSDMEEOStaff@ihs.gov

or

Angela Porter, Director
Diversity Management and Equal Employment Opportunity Staff
Indian Health Service
5600 Fishers Lane 08 08E61
Rockville, MD 20857

I (do_____) (do not_____) have a representative at this time.

My representative is:
Name:_____
Address:_____
_____
Phone No.: (_____)_____
Fax: (_____)_____
E-mail:_____

_____ **My representative is an attorney.** I understand that the Agency is not required to pay attorney's fees for services performed during the pre-complaint process, and I understand that all time frames associated with the processing of my complaint will be calculated from my attorney's receipt of correspondence. 29 C.F.R. §§ 1614.501(e)(1)(iv) and 1614.605(d).

_____**My representative is not an attorney.** I understand that all time frames associated with the processing of my complaint will be calculated from my receipt of correspondence.

I understand that:

Unless I state otherwise in writing, since I have designated a representative, all official correspondence shall be to the representative with copies to me. Also, although I have designated a representative, I am at all times responsible for proceeding with the complaint. Additionally, if I choose to have representation or make a change in representation, I must immediately notify the Agency. Finally, there is no entitlement to attorney fees or costs for discrimination under the Age Discrimination in Employment Act (ADEA) or the Equal Pay Act (EPA), as amended.

_____ _____

Complainant Date